

LITTLE SCIENTIST LTD

Participation Waiver, Assumption of Risk & Consent

1. Voluntary Participation

I acknowledge that I and/or my child/ward are voluntarily entering premises operated by Little Scientist Ltd and participating in activities including interactive exhibits, workshops, demonstrations, movement installations, and educational experiments.

2. Supervision and Protection of Minors

Children and minors must remain under the direct supervision of their accompanying adult at all times. Little Scientist staff do not assume responsibility for the supervision, care or custody of children. By signing or accepting these terms, I confirm that I have authority to consent on behalf of the child/ward named in the booking.

3. Assumption of Risk

I understand that participation involves inherent and ordinary risks, including but not limited to slips, trips, minor injury, equipment malfunction, and accidental contact with other participants.

I voluntarily assume these ordinary risks.

4. Participant Responsibilities

I confirm that:

- I have the authority to consent on behalf of my child/ward.
- We will cease participation immediately if unwell, unsafe, or unable to participate safely.
- We will comply with all posted rules and staff instructions.
- Equipment will be used only as intended.
- I will supervise my child/ward at all times.

5. Limitation of Liability

To the fullest extent permitted under the laws of Kenya:

- Little Scientist Ltd shall not be liable for injury or loss arising solely from risks that are inherent and ordinarily associated with participation in the relevant activity. This waiver does not exclude liability for negligence, wilful misconduct, or any other liability that cannot lawfully be excluded.
- Little Scientist Ltd shall not be liable for injury resulting solely from misuse of equipment, reckless behaviour, or failure to follow instructions.

6. Indemnification AND Hold Harmless

The parent/guardian agrees to indemnify and hold harmless Little Scientist Ltd, its directors, employees and agents, from and against claims, liabilities, losses, damages and reasonable legal expenses arising from the minor's participation in the activities, to the extent that such claims arise from the minor's or accompanying adult's acts, omissions, misuse of facilities, or failure to comply

with safety instructions. This indemnity shall not apply to any claim to the extent caused by the negligence, gross negligence, willful misconduct or breach of duty by Little Scientist Ltd, its employees or agents.

7. Property Damage

I agree to reimburse Little Scientist Ltd for reasonable repair or replacement costs resulting from misconduct, reckless behaviour, misuse, or failure to follow instructions.

8. CCTV & Data Protection

CCTV operates on the premises for safety and security purposes. CCTV may capture visitors, and personal data will be processed in accordance with Kenya's Data Protection Act and applicable regulations.

9. Governing Law and Jurisdiction

This Agreement and any dispute, claim, suit, action, or proceeding arising out of or in connection with it (including any non-contractual claims) shall be governed by and construed in accordance with the laws of the Republic of Kenya.

The parties hereby submit to the jurisdiction of the courts of Nairobi or Machakos, Kenya, for the determination of any such dispute or proceeding and waive any objection to such jurisdiction, venue, or claim of inconvenient forum.

10. Severability

If any provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal, or unenforceable, that provision shall be severed, and the remaining provisions shall remain in full force and effect to the fullest extent permitted by law.

☐ **I confirm that I have read, understood and agree to the above terms and conditions**